COMMERCIAL AGREEMENT - RECORD 004

Helioscope Robotics, Inc. - diligence file reference COMMERCIAL_CONTRACTS-004

1. Recitals and defined terms

This Master Subscription Agreement is made between Helioscope Robotics, Inc. as Provider and Dunbar Industrial Group LP as Customer, a building products business organised in Indiana, contracting through Dunbar Industrial Group LP. Dunbar and the Provider have agreed that terms defined in the recitals and in Schedule 3 carry the same meaning throughout, and that a defined term used in an Order has the meaning given here unless the Order expressly varies it.

Dunbar pays the fees under Exhibit B in consideration of the Provider's undertaking that confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. In effect, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. In building products the burden of this sits with operations, and Dunbar discharges it across 3 sites under the Master Subscription Agreement. The Dunbar relationship is managed against Article 15 (Limitation of Liability) at each quarterly review, and any variance is minuted there rather than in the Order.

On the terms of Schedule 2, spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. As a matter of construction, performance is measured against the exhibit and not against any statement made in the parties' correspondence. For Dunbar, a building products operator running 3 sites out of Indiana, the point matters because the Master Subscription Agreement is administered site by site. Dunbar has taken the point up once since signature; the correspondence is filed against Article 8 (Acceptance) and did not result in an amendment.

Dunbar and the Provider agree that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. On the operative wording, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. The Master Subscription Agreement reaches each of Dunbar's 3 sites separately, which is how a building products operator in Indiana administers it. For a customer of Dunbar's size the clause is unremarkable, but Article 3 (Scope of Supply) is drafted more tightly here than in the Provider's standard form.

For the purposes of the Master Subscription Agreement, a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. As it bites, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. 3 sites in Indiana means Dunbar applies the Master Subscription Agreement through its regional operations team rather than through head office. Where Dunbar has raised a query the Provider has answered by reference to Article 14 (Indemnities), and the exchange is on the contract file.

Dunbar subscription agreement - Schedule 5 - Notices, Periods and Addressees

Dunbar notice type	Subject	Period	Addressee	Method	Deemed given
DUN-N001	assignment request	90 days	designated account executive	courier only	on the second business day after despatch
DUN-N002	breach	60 days	Contracts Manager	email with acknowledgement	on despatch
DUN-N003	termination for cause	15 days	Chief Operating Officer	courier and email	on receipt
DUN-N004	breach	10 days	Chief Operating Officer	portal notice	on the second business day after despatch
DUN-N005	assignment request	40 days	Contracts Manager	courier only	on despatch
DUN-N006	breach	85 days	General Counsel	courier only	on receipt
DUN-N007	force majeure	75 days	designated account executive	courier and email	on despatch
DUN-N008	service credit claim	65 days	General Counsel	courier only	on despatch
DUN-N009	breach	35 days	General Counsel	portal notice	on receipt
DUN-N010	assignment request	50 days	Chief Operating Officer	portal notice	on despatch
DUN-N011	service credit claim	45 days	Chief Operating Officer	portal notice	on the second business day after

Dunbar notice type	Subject	Period	Addressee	Method	Deemed given
					despatch
DUN-N012	price adjustment	75 days	Chief Operating Officer	courier only	on the second business day after despatch
DUN-N013	price adjustment	80 days	Contracts Manager	portal notice	on despatch
DUN-N014	termination for cause	85 days	designated account executive	portal notice	on receipt
DUN-N015	breach	60 days	General Counsel	courier and email	on the second business day after despatch
DUN-N016	termination for cause	80 days	General Counsel	portal notice	on receipt
DUN-N017	force majeure	55 days	Contracts Manager	courier only	on receipt
DUN-N018	price adjustment	20 days	designated account executive	portal notice	on despatch
DUN-N019	renewal election	30 days	Chief Operating Officer	portal notice	on despatch
DUN-N020	change of control	15 days	designated account executive	portal notice	on despatch
DUN-N021	assignment request	15 days	Chief Operating Officer	courier only	on receipt
DUN-N022	renewal election	65 days	General Counsel	courier and email	on the second business day after despatch
DUN-N023	termination for cause	40 days	designated account executive	email with acknowledgement	on despatch
DUN-N024	change of control	5 days	General Counsel	courier only	on the second business day after despatch
DUN-N025	termination for cause	90 days	Chief Operating Officer	email with acknowledgement	on despatch
DUN-N026	change of control	40 days	Contracts Manager	email with acknowledgement	on despatch
DUN-N027	renewal election	70 days	Contracts Manager	courier only	on receipt
DUN-N028	breach	5 days	designated account executive	portal notice	on the second business day after despatch
DUN-N029	non-renewal	35 days	Contracts Manager	courier only	on despatch
DUN-N030	breach	65 days	Chief Operating Officer	portal notice	on receipt
DUN-N031	breach	60 days	Contracts Manager	courier and email	on despatch
DUN-N032	breach	20 days	Contracts Manager	courier only	on receipt
DUN-N033	non-renewal	65 days	designated account executive	portal notice	on the second business day after despatch
DUN-N034	assignment request	40 days	Chief Operating Officer	courier only	on the second business day after despatch
DUN-N035	price adjustment	10 days	General Counsel	email with acknowledgement	on the second business day after despatch
DUN-N036	price adjustment	90 days	Contracts Manager	courier and email	on despatch
DUN-N037	breach	45 days	designated account executive	portal notice	on the second business day after despatch
DUN-N038	renewal election	85 days	Chief Operating Officer	courier only	on despatch
DUN-N039	breach	90 days	designated account executive	courier only	on the second business day after despatch
DUN-N040	assignment request	90 days	designated account executive	portal notice	on the second business day after despatch
DUN-N041	price adjustment	30 days	Contracts Manager	courier and email	on the second business day after despatch
DUN-N042	breach	10 days	General Counsel	courier only	on despatch
DUN-N043	assignment request	40 days	Chief Operating Officer	courier only	on the second business day after despatch
DUN-N044	change of control	35 days	Chief Operating	portal notice	on despatch

Dunbar notice type	Subject	Period	Addressee	Method	Deemed given
			Officer		
DUN-N045	assignment request	55 days	Contracts Manager	portal notice	on despatch
DUN-N046	breach	5 days	Chief Operating Officer	courier only	on receipt
DUN-N047	force majeure	10 days	General Counsel	portal notice	on receipt
DUN-N048	change of control	60 days	designated account executive	portal notice	on despatch
DUN-N049	change of control	50 days	Contracts Manager	courier and email	on the second business day after despatch
DUN-N050	renewal election	80 days	Contracts Manager	courier and email	on despatch
DUN-N051	breach	70 days	designated account executive	portal notice	on the second business day after despatch
DUN-N052	non-renewal	35 days	designated account executive	portal notice	on the second business day after despatch
DUN-N053	breach	70 days	General Counsel	portal notice	on receipt
DUN-N054	assignment request	55 days	Contracts Manager	courier only	on receipt
DUN-N055	non-renewal	35 days	Contracts Manager	email with acknowledgement	on receipt
DUN-N056	assignment request	30 days	General Counsel	email with acknowledgement	on the second business day after despatch
DUN-N057	force majeure	15 days	designated account executive	email with acknowledgement	on the second business day after despatch
DUN-N058	price adjustment	45 days	Chief Operating Officer	courier only	on despatch
DUN-N059	termination for cause	20 days	Chief Operating Officer	courier only	on the second business day after despatch
DUN-N060	non-renewal	15 days	Contracts Manager	email with acknowledgement	on receipt
DUN-N061	breach	65 days	Chief Operating Officer	courier only	on despatch
DUN-N062	assignment request	90 days	designated account executive	courier only	on receipt
DUN-N063	assignment request	60 days	Contracts Manager	portal notice	on despatch
DUN-N064	change of control	45 days	General Counsel	email with acknowledgement	on despatch
DUN-N065	price adjustment	55 days	designated account executive	email with acknowledgement	on despatch
DUN-N066	change of control	55 days	Chief Operating Officer	email with acknowledgement	on the second business day after despatch
DUN-N067	non-renewal	15 days	Chief Operating Officer	courier only	on despatch
DUN-N068	assignment request	40 days	Chief Operating Officer	courier and email	on despatch
DUN-N069	price adjustment	40 days	Chief Operating Officer	portal notice	on despatch
DUN-N070	termination for cause	15 days	Contracts Manager	courier only	on the second business day after despatch
DUN-N071	price adjustment	50 days	Chief Operating Officer	email with acknowledgement	on despatch
DUN-N072	change of control	15 days	designated account executive	email with acknowledgement	on the second business day after despatch
DUN-N073	force majeure	40 days	Contracts Manager	courier only	on the second business day after despatch
DUN-N074	non-renewal	60 days	General Counsel	courier and email	on receipt
DUN-N075	termination for cause	5 days	Chief Operating Officer	email with acknowledgement	on despatch
DUN-N076	service credit claim	25 days	designated account executive	courier only	on the second business day after despatch
DUN-N077	assignment request	45 days	Chief Operating	courier and email	on despatch

Dunbar notice type	Subject	Period	Addressee	Method	Deemed given
			Officer		
DUN-N078	breach	30 days	designated account executive	courier and email	on receipt

2. Scope of supply and orders

Dunbar Industrial Group LP is entitled to require that spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. As a remedy, performance is measured against the exhibit and not against any statement made in the parties' correspondence. For Dunbar, a building products operator running 3 sites out of Indiana, the point matters because the Master Subscription Agreement is administered site by site. Dunbar has taken the point up once since signature; the correspondence is filed against Article 17 (Transition Assistance) and did not result in an amendment.

Except as Article 20 (Notices) permits, spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. In effect, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Running 3 sites in building products, Dunbar takes this obligation at site level rather than centrally under the Master Subscription Agreement. Notices under Article 3 (Scope of Supply) go to the contracting entity named in the recital and not to any Dunbar affiliate that may operate a site.

As between Dunbar and the Provider, a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. On the wording, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Operating 3 sites, Dunbar applies the Master Subscription Agreement at the point of delivery, as building products practice requires. Because Dunbar operates in building products, the practical burden of this clause falls on its Indiana operation, and Article 11 (Data and Telemetry) governs how it is measured.

Dunbar retains the right, notwithstanding Article 17 (Transition Assistance), to require that confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. As to enforcement, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Running 3 sites in building products, Dunbar takes this obligation at site level rather than centrally under the Master Subscription Agreement. The obligation as it applies to Dunbar was tightened at signature, and Article 13 (Licences) carries the negotiated wording rather than the standard wording.

3. Delivery, title and risk

Dunbar Industrial Group LP is entitled to require that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. By way of qualification, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Because Dunbar is a Indiana building products business with 3 sites, the Master Subscription Agreement devolves this to the site manager. The obligation as it applies to Dunbar was tightened at signature, and Article 3 (Scope of Supply) carries the negotiated wording rather than the standard wording.

As between Dunbar and the Provider, the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. By way of qualification, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Site count matters here: Dunbar has 3 sites, and the Master Subscription Agreement treats each as a separate delivery point. The Dunbar relationship is managed against Article 5 (Delivery and Title) at each quarterly review, and any variance is minuted there rather than in the Order.

Dunbar and the Provider agree that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. On this point, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Running 3 sites in building products, Dunbar takes this obligation at site level rather than centrally under the Master Subscription Agreement. Administration of this obligation for Dunbar sits with the account team rather than with central contracts, and Article 15 (Limitation of Liability) is where it is evidenced.

Except as Article 12 (Intellectual Property) permits, the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. Per the amendment history, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Running 3 sites in building products, Dunbar takes this obligation at site level rather than centrally under the Master Subscription Agreement. Administration of this obligation for Dunbar sits with the account team rather than with central contracts, and Article 2 (Definitions) is where it is evidenced.

Dunbar subscription agreement - Exhibit A - Fee Schedule and Annual Escalator

Dunbar fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
DUN-F001	AMR-400 heavy unit	20	$8,548	$170,960	4.1%	not escalated
DUN-F002	charge dock	20	$1,982	$39,640	2.7%	on renewal only
DUN-F003	AMR-400 heavy unit	16	$8,858	$141,728	4.1%	annually each January
DUN-F004	gateway appliance	23	$2,116	$48,668	5.9%	annually on the anniversary
DUN-F005	lift attachment	24	$3,195	$76,680	4.5%	on renewal only
DUN-F006	AMR-200 mobile unit	30	$4,135	$124,050	2.7%	not escalated
DUN-F007	AMR-400 heavy unit	33	$5,781	$190,773	5.4%	annually each January
DUN-F008	charge dock	11	$3,689	$40,579	3.1%	annually each January
DUN-F009	AMR-200 mobile unit	9	$8,220	$73,980	3.6%	annually each January
DUN-F010	fleet controller	36	$4,763	$171,468	5.8%	annually each January
DUN-F011	lift attachment	31	$4,361	$135,191	5.9%	not escalated
DUN-F012	lift attachment	39	$7,903	$308,217	4.5%	on renewal only
DUN-F013	charge dock	30	$4,365	$130,950	5.2%	annually each January
DUN-F014	safety scanner kit	26	$4,016	$104,416	2.9%	annually on the anniversary
DUN-F015	tote carrier	37	$5,559	$205,683	4.8%	on renewal only
DUN-F016	safety scanner kit	25	$3,818	$95,450	5.6%	annually on the anniversary
DUN-F017	tote carrier	21	$5,831	$122,451	5.5%	not escalated
DUN-F018	gateway appliance	23	$2,554	$58,742	3.7%	annually each January
DUN-F019	safety scanner kit	26	$3,875	$100,750	2.0%	on renewal only
DUN-F020	AMR-400 heavy unit	38	$1,216	$46,208	4.5%	on renewal only
DUN-F021	AMR-200 mobile unit	8	$8,449	$67,592	4.1%	not escalated
DUN-F022	AMR-400 heavy unit	16	$7,943	$127,088	5.4%	not escalated
DUN-F023	safety scanner kit	14	$9,339	$130,746	3.3%	on renewal only
DUN-F024	gateway appliance	15	$9,121	$136,815	4.7%	on renewal only
DUN-F025	AMR-200 mobile unit	41	$4,393	$180,113	4.2%	annually each January
DUN-F026	charge dock	26	$4,411	$114,686	4.1%	annually each January
DUN-F027	AMR-400 heavy unit	25	$7,425	$185,625	4.0%	not escalated
DUN-F028	lift attachment	23	$8,321	$191,383	5.6%	not escalated
DUN-F029	fleet controller	7	$3,875	$27,125	4.6%	annually each January
DUN-F030	lift attachment	24	$6,338	$152,112	2.7%	not escalated
DUN-F031	safety scanner kit	11	$3,060	$33,660	2.2%	on renewal only
DUN-F032	tote carrier	23	$1,888	$43,424	4.3%	not escalated
DUN-F033	charge dock	13	$2,397	$31,161	5.2%	annually on the anniversary
DUN-F034	AMR-200 mobile unit	32	$7,691	$246,112	5.1%	on renewal only
DUN-F035	AMR-400 heavy unit	26	$7,424	$193,024	2.5%	annually each January

Dunbar fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
DUN-F036	gateway appliance	3	$8,084	$24,252	4.2%	annually each January
DUN-F037	charge dock	19	$7,151	$135,869	5.4%	not escalated
DUN-F038	tote carrier	15	$7,949	$119,235	4.6%	on renewal only
DUN-F039	AMR-400 heavy unit	4	$6,128	$24,512	2.3%	on renewal only
DUN-F040	gateway appliance	27	$2,361	$63,747	3.1%	annually on the anniversary
DUN-F041	tote carrier	27	$8,070	$217,890	4.2%	annually on the anniversary
DUN-F042	tote carrier	40	$3,715	$148,600	5.9%	annually each January
DUN-F043	safety scanner kit	34	$6,123	$208,182	3.7%	annually each January
DUN-F044	AMR-200 mobile unit	3	$7,110	$21,330	3.7%	on renewal only
DUN-F045	charge dock	13	$3,737	$48,581	2.2%	not escalated
DUN-F046	fleet controller	31	$1,717	$53,227	3.9%	not escalated
DUN-F047	tote carrier	22	$1,150	$25,300	3.6%	not escalated
DUN-F048	safety scanner kit	39	$3,093	$120,627	2.4%	annually each January
DUN-F049	AMR-400 heavy unit	12	$1,189	$14,268	2.0%	on renewal only
DUN-F050	gateway appliance	9	$1,280	$11,520	3.8%	annually on the anniversary
DUN-F051	tote carrier	2	$5,691	$11,382	2.7%	not escalated
DUN-F052	AMR-400 heavy unit	17	$3,065	$52,105	4.6%	on renewal only
DUN-F053	lift attachment	35	$4,960	$173,600	3.5%	annually on the anniversary
DUN-F054	AMR-400 heavy unit	33	$2,567	$84,711	5.6%	annually on the anniversary
DUN-F055	AMR-200 mobile unit	19	$7,931	$150,689	2.7%	on renewal only
DUN-F056	gateway appliance	11	$3,569	$39,259	2.9%	annually on the anniversary
DUN-F057	lift attachment	30	$1,299	$38,970	4.0%	on renewal only
DUN-F058	AMR-200 mobile unit	26	$3,381	$87,906	5.0%	annually on the anniversary
DUN-F059	charge dock	31	$7,068	$219,108	4.5%	not escalated
DUN-F060	AMR-400 heavy unit	3	$4,033	$12,099	5.5%	annually on the anniversary
DUN-F061	tote carrier	8	$6,260	$50,080	2.9%	on renewal only
DUN-F062	safety scanner kit	16	$8,536	$136,576	4.8%	annually each January
DUN-F063	gateway appliance	37	$8,596	$318,052	5.9%	annually on the anniversary
DUN-F064	lift attachment	36	$3,745	$134,820	4.4%	annually each January
DUN-F065	lift attachment	2	$3,584	$7,168	5.0%	on renewal only
DUN-F066	AMR-400 heavy unit	13	$9,412	$122,356	3.1%	not escalated
DUN-F067	safety scanner kit	6	$8,641	$51,846	3.7%	not escalated
DUN-F068	fleet controller	3	$3,837	$11,511	2.2%	not escalated
DUN-F069	charge dock	13	$4,010	$52,130	3.4%	not escalated
DUN-F070	tote carrier	25	$1,533	$38,325	4.4%	annually on the anniversary
DUN-F071	fleet controller	34	$7,764	$263,976	2.9%	not escalated
DUN-F072	AMR-400 heavy unit	29	$6,245	$181,105	3.5%	annually on the anniversary
DUN-F073	gateway appliance	40	$7,986	$319,440	5.0%	not escalated
DUN-F074	safety scanner kit	36	$6,410	$230,760	5.5%	annually each January
DUN-F075	lift attachment	21	$1,245	$26,145	5.8%	not escalated
DUN-F076	gateway appliance	12	$1,325	$15,900	2.5%	not escalated
DUN-F077	charge dock	14	$6,054	$84,756	2.3%	annually on the anniversary

Dunbar fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
DUN-F078	lift attachment	24	$4,071	$97,704	5.4%	not escalated
DUN-F079	gateway appliance	29	$8,974	$260,246	2.1%	on renewal only
DUN-F080	charge dock	15	$3,222	$48,330	2.5%	not escalated
DUN-F081	fleet controller	37	$9,514	$352,018	5.6%	annually on the anniversary
DUN-F082	AMR-200 mobile unit	10	$5,292	$52,920	3.9%	not escalated
DUN-F083	lift attachment	32	$6,071	$194,272	5.3%	annually on the anniversary
DUN-F084	tote carrier	34	$1,975	$67,150	3.2%	annually on the anniversary
DUN-F085	fleet controller	5	$8,371	$41,855	4.2%	annually each January
DUN-F086	AMR-400 heavy unit	40	$6,282	$251,280	2.6%	annually on the anniversary
DUN-F087	safety scanner kit	28	$8,847	$247,716	5.3%	annually each January
DUN-F088	charge dock	10	$7,611	$76,110	3.5%	annually on the anniversary

4. Fees, invoicing and escalation

On the terms of Schedule 2, spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. Operationally, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Indiana is where Dunbar runs building products operations across 3 sites, and the Master Subscription Agreement follows that footprint. The Dunbar relationship is managed against Article 13 (Licences) at each quarterly review, and any variance is minuted there rather than in the Order.

As between Dunbar and the Provider, the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. As it bites, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. The Master Subscription Agreement reaches each of Dunbar's 3 sites separately, which is how a building products operator in Indiana administers it. The Dunbar relationship is managed against Article 18 (Assignment) at each quarterly review, and any variance is minuted there rather than in the Order.

Read with Schedule 5, on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. On the negotiated text, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. This bites at Dunbar's 3 sites, since a building products operator administers the Master Subscription Agreement where the units work. Nothing in the Dunbar negotiation history qualifies Article 9 (Customer Obligations), and a reviewer should not read the pre-signature drafts as doing so.

Dunbar Industrial Group LP is entitled to require that either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. In point of remedy, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. 3 sites in Indiana means Dunbar applies the Master Subscription Agreement through its regional operations team rather than through head office. Where Dunbar has raised a query the Provider has answered by reference to Article 13 (Licences), and the exchange is on the contract file.

5. Service levels and credits

Nothing in Schedule 2 entitles Dunbar to assume that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. In substance, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. This bites at Dunbar's 3 sites, since a building products operator administers the Master Subscription Agreement where the units work. The Dunbar relationship is managed against Article 7 (Service Levels) at each quarterly review, and any variance is minuted there rather than in the Order.

Except as Article 7 (Service Levels) permits, the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. As between them, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Running 3 sites in building products, Dunbar takes this obligation at site level rather than centrally under the Master Subscription Agreement. Administration of this obligation for Dunbar sits with the account team rather than with central contracts, and Article 9 (Customer Obligations) is where it is evidenced.

Except as Article 4 (Orders and Quantities) permits, each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. As a matter of construction, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. For Dunbar, a building products operator running 3 sites out of Indiana, the point matters because the Master Subscription Agreement is administered site by site. Because Dunbar operates in building products, the practical burden of this clause falls on its Indiana operation, and Article 10 (Change Control) governs how it is measured.

Read with Exhibit D, the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. Intended effect: the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. This bites at Dunbar's 3 sites, since a building products operator administers the Master Subscription Agreement where the units work. Because Dunbar operates in building products, the practical burden of this clause falls on its Indiana operation, and Article 14 (Indemnities) governs how it is measured.

6. Acceptance and change control

Dunbar has agreed, and the Provider has accepted, that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. Per the amendment history, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Dunbar runs 3 sites from Indiana in building products, so the Master Subscription Agreement is administered locally and this clause is applied per site. Where Dunbar has raised a query the Provider has answered by reference to Article 12 (Intellectual Property), and the exchange is on the contract file.

The Provider warrants to Dunbar that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. As agreed, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Operating 3 sites, Dunbar applies the Master Subscription Agreement at the point of delivery, as building products practice requires. Nothing in the Dunbar negotiation history qualifies Article 7 (Service Levels), and a reviewer should not read the pre-signature drafts as doing so.

Dunbar Industrial Group LP undertakes that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. As it bites, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Operating 3 sites, Dunbar applies the Master Subscription Agreement at the point of delivery, as building products practice requires. Nothing in the Dunbar negotiation history qualifies Article 15 (Limitation of Liability), and a reviewer should not read the pre-signature drafts as doing so.

Save as Exhibit A otherwise provides, the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. In substance, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. For Dunbar, a building products operator running 3 sites out of Indiana, the point matters because the Master Subscription Agreement is administered site by site. Notices under Article 15 (Limitation of Liability) go to the contracting entity named in the recital and not to any Dunbar affiliate that may operate a site.

Dunbar subscription agreement - Schedule 2 - Sites and Operating Patterns

Dunbar site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
DUN-S001	Harborline facility	29	2025-05-12	single shift	shared	pending acceptance
DUN-S002	Dunbar facility	23	2025-09-27	continuous	shared	accepted
DUN-S003	Mesa facility	25	2026-08-26	two shifts	Customer	pending

Dunbar site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
					furnished	acceptance
DUN-S004	Keystone facility	31	2024-05-15	continuous	shared	accepted with punch list
DUN-S005	Dunbar facility	9	2026-06-25	continuous	shared	pending acceptance
DUN-S006	Crestline facility	5	2026-03-07	single shift	Provider furnished	accepted
DUN-S007	Evergreen facility	17	2025-03-12	continuous	shared	pending acceptance
DUN-S008	Granite facility	10	2024-08-26	single shift	Provider furnished	not commenced
DUN-S009	Larkspur facility	6	2024-11-16	continuous	shared	not commenced
DUN-S010	Granite facility	16	2026-09-16	two shifts	Provider furnished	not commenced
DUN-S011	Dunbar facility	10	2026-07-22	continuous	Customer furnished	not commenced
DUN-S012	Keystone facility	32	2025-09-22	single shift	shared	not commenced
DUN-S013	Crestline facility	9	2024-11-16	continuous	shared	accepted with punch list
DUN-S014	Crestline facility	9	2024-03-24	continuous	Provider furnished	pending acceptance
DUN-S015	Granite facility	12	2026-10-22	single shift	shared	pending acceptance
DUN-S016	Crestline facility	4	2024-02-20	two shifts	Customer furnished	accepted
DUN-S017	Keystone facility	29	2024-09-26	single shift	Customer furnished	accepted
DUN-S018	Fathom facility	20	2025-03-23	two shifts	Provider furnished	not commenced
DUN-S019	Juniper facility	12	2025-02-02	continuous	shared	accepted
DUN-S020	Harborline facility	26	2024-09-05	continuous	Provider furnished	not commenced
DUN-S021	Juniper facility	22	2024-05-02	continuous	Customer furnished	not commenced
DUN-S022	Juniper facility	36	2026-03-15	two shifts	Provider furnished	accepted with punch list
DUN-S023	Meridian facility	15	2026-03-05	single shift	shared	accepted
DUN-S024	Meridian facility	15	2026-09-25	continuous	Customer furnished	not commenced
DUN-S025	Larkspur facility	27	2025-08-12	two shifts	Provider furnished	not commenced
DUN-S026	Dayton facility	12	2024-08-02	two shifts	shared	pending acceptance
DUN-S027	Fathom facility	27	2026-07-02	two shifts	shared	pending acceptance
DUN-S028	Crestline facility	27	2026-12-10	two shifts	shared	not commenced
DUN-S029	Harborline facility	11	2026-09-14	two shifts	shared	pending acceptance
DUN-S030	Harborline facility	27	2024-03-02	continuous	shared	accepted with punch list
DUN-S031	Harborline facility	27	2024-05-22	two shifts	shared	pending acceptance
DUN-S032	Dunbar facility	33	2025-03-17	single shift	Provider furnished	accepted with punch list
DUN-S033	Granite facility	29	2025-06-01	two shifts	Customer furnished	accepted with punch list
DUN-S034	Mesa facility	31	2026-10-24	continuous	shared	accepted
DUN-S035	Dunbar facility	13	2025-07-20	single shift	Provider furnished	accepted with punch list
DUN-S036	Keystone facility	26	2025-02-28	continuous	Customer furnished	pending acceptance
DUN-S037	Meridian facility	38	2024-07-08	continuous	Customer furnished	accepted with punch list
DUN-S038	Harborline facility	34	2024-03-10	single shift	shared	accepted
DUN-S039	Granite facility	36	2026-06-11	single shift	Provider furnished	accepted with punch list
DUN-S040	Mesa facility	34	2026-06-25	two shifts	Provider furnished	not commenced

Dunbar site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
DUN-S041	Granite facility	10	2025-04-01	single shift	shared	accepted
DUN-S042	Dayton facility	16	2025-02-18	continuous	Customer furnished	accepted
DUN-S043	Keystone facility	37	2024-01-15	single shift	Customer furnished	pending acceptance
DUN-S044	Larkspur facility	24	2025-03-22	two shifts	Provider furnished	pending acceptance
DUN-S045	Dunbar facility	34	2025-08-20	continuous	Customer furnished	accepted
DUN-S046	Fathom facility	28	2025-06-03	single shift	Customer furnished	not commenced
DUN-S047	Fathom facility	20	2025-03-10	single shift	Customer furnished	accepted with punch list
DUN-S048	Juniper facility	23	2026-07-27	continuous	Provider furnished	not commenced
DUN-S049	Juniper facility	13	2024-08-28	single shift	shared	accepted
DUN-S050	Mesa facility	4	2026-11-01	continuous	shared	accepted
DUN-S051	Crestline facility	26	2025-04-02	two shifts	Provider furnished	accepted
DUN-S052	Harborline facility	33	2024-02-19	two shifts	shared	pending acceptance
DUN-S053	Granite facility	27	2024-09-21	single shift	shared	pending acceptance
DUN-S054	Keystone facility	11	2025-08-03	single shift	shared	accepted with punch list
DUN-S055	Keystone facility	16	2025-04-23	continuous	Provider furnished	accepted
DUN-S056	Dayton facility	32	2025-01-15	two shifts	shared	not commenced
DUN-S057	Evergreen facility	10	2024-12-04	continuous	Provider furnished	pending acceptance
DUN-S058	Harborline facility	13	2025-12-11	continuous	Provider furnished	not commenced
DUN-S059	Keystone facility	22	2026-08-04	two shifts	shared	not commenced
DUN-S060	Crestline facility	18	2025-08-28	two shifts	shared	pending acceptance
DUN-S061	Dunbar facility	29	2024-04-20	continuous	shared	pending acceptance
DUN-S062	Crestline facility	27	2024-10-12	single shift	Provider furnished	accepted with punch list
DUN-S063	Larkspur facility	23	2025-12-25	continuous	Provider furnished	accepted with punch list
DUN-S064	Evergreen facility	9	2026-05-20	single shift	Provider furnished	pending acceptance
DUN-S065	Crestline facility	39	2024-07-13	single shift	shared	pending acceptance
DUN-S066	Crestline facility	37	2025-11-07	continuous	shared	accepted
DUN-S067	Dunbar facility	20	2024-11-11	continuous	shared	not commenced
DUN-S068	Keystone facility	32	2026-05-07	continuous	Provider furnished	pending acceptance
DUN-S069	Larkspur facility	7	2025-07-17	single shift	Customer furnished	accepted with punch list
DUN-S070	Larkspur facility	22	2025-02-05	single shift	Customer furnished	pending acceptance
DUN-S071	Mesa facility	26	2025-07-17	two shifts	Customer furnished	not commenced
DUN-S072	Crestline facility	9	2026-03-17	two shifts	Provider furnished	accepted with punch list
DUN-S073	Harborline facility	5	2024-08-20	single shift	Provider furnished	accepted with punch list
DUN-S074	Harborline facility	21	2026-08-03	continuous	shared	pending acceptance
DUN-S075	Dayton facility	19	2024-09-07	continuous	Customer furnished	pending acceptance
DUN-S076	Juniper facility	13	2025-11-28	continuous	Provider furnished	pending acceptance
DUN-S077	Harborline facility	7	2026-12-28	single shift	Customer furnished	not commenced
DUN-S078	Crestline facility	7	2026-04-19	continuous	Customer furnished	accepted with punch list

Dunbar site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
DUN-S079	Juniper facility	18	2025-12-18	two shifts	Provider furnished	pending acceptance
DUN-S080	Keystone facility	33	2024-02-14	two shifts	Provider furnished	pending acceptance
DUN-S081	Keystone facility	14	2025-10-27	continuous	Customer furnished	not commenced
DUN-S082	Meridian facility	19	2026-04-24	continuous	shared	accepted
DUN-S083	Harborline facility	9	2026-02-08	single shift	Provider furnished	not commenced
DUN-S084	Dunbar facility	17	2026-03-07	two shifts	Customer furnished	accepted with punch list

7. Data, intellectual property and licences

On a proper construction of Schedule 3, the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. By way of qualification, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Indiana is where Dunbar runs building products operations across 3 sites, and the Master Subscription Agreement follows that footprint. Notices under Article 21 (Governing Law and Disputes) go to the contracting entity named in the recital and not to any Dunbar affiliate that may operate a site.

The Provider has undertaken to Dunbar that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. In terms of consequence, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. 3 sites in Indiana means Dunbar applies the Master Subscription Agreement through its regional operations team rather than through head office. Administration of this obligation for Dunbar sits with the account team rather than with central contracts, and Article 12 (Intellectual Property) is where it is evidenced.

Read with Schedule 5, the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. On any reading, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Site count matters here: Dunbar has 3 sites, and the Master Subscription Agreement treats each as a separate delivery point. Where Dunbar has raised a query the Provider has answered by reference to Article 8 (Acceptance), and the exchange is on the contract file.

Dunbar acknowledges that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. On the operative wording, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. For Dunbar, a building products operator running 3 sites out of Indiana, the point matters because the Master Subscription Agreement is administered site by site. The Dunbar relationship is managed against Article 12 (Intellectual Property) at each quarterly review, and any variance is minuted there rather than in the Order.

8. Indemnities and limitation of liability

Dunbar has agreed, and the Provider has accepted, that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. As a matter of construction, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Operating 3 sites, Dunbar applies the Master Subscription Agreement at the point of delivery, as building products practice requires. Nothing in the Dunbar negotiation history qualifies Article 18 (Assignment), and a reviewer should not read the pre-signature drafts as doing so.

For the purposes of the Master Subscription Agreement, the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. Procedurally, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. 3 sites in Indiana means Dunbar applies the Master Subscription Agreement

through its regional operations team rather than through head office. The Dunbar relationship is managed against Article 21 (Governing Law and Disputes) at each quarterly review, and any variance is minuted there rather than in the Order.

The parties have recorded in Schedule 2 that either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. Per the amendment history, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Because Dunbar is a Indiana building products business with 3 sites, the Master Subscription Agreement devolves this to the site manager. Notices under Article 20 (Notices) go to the contracting entity named in the recital and not to any Dunbar affiliate that may operate a site.

Dunbar bears the risk that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. Procedurally, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Dunbar treats the obligation as a site-level matter across its 3 sites in Indiana, consistent with the Master Subscription Agreement. Notices under Article 12 (Intellectual Property) go to the contracting entity named in the recital and not to any Dunbar affiliate that may operate a site.

Dunbar subscription agreement - Schedule 3 - Deployment Milestones and Payment Triggers

Dunbar milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
DUN-M001	network readiness certified	2025-06	29	facility readiness	$21,381	invoiceable on certification
DUN-M002	pilot acceptance	2024-02	21	facility readiness	$83,561	no payment attached
DUN-M003	site survey complete	2025-06	27	network provisioning	$68,415	invoiceable on certification
DUN-M004	units delivered	2025-11	24	seasonal freeze	$68,622	no payment attached
DUN-M005	warranty commencement	2026-05	3	facility readiness	$174,930	no payment attached
DUN-M006	units delivered	2026-04	14	network provisioning	$213,737	invoiceable on certification
DUN-M007	network readiness certified	2026-03	31	Customer IT dependency	$199,080	invoiceable on certification
DUN-M008	steady-state handover	2026-12	10	Customer IT dependency	$14,096	invoiceable on acceptance
DUN-M009	steady-state handover	2024-05	14	Customer IT dependency	$41,055	invoiceable on certification
DUN-M010	integration test passed	2025-11	11	labour agreement	$52,576	invoiceable on acceptance
DUN-M011	network readiness certified	2025-10	27	facility readiness	$49,688	invoiceable on acceptance
DUN-M012	network readiness certified	2026-11	33	seasonal freeze	$55,514	invoiceable on acceptance
DUN-M013	steady-state handover	2026-06	25	network provisioning	$249,206	invoiceable on certification
DUN-M014	integration test passed	2025-03	21	labour agreement	$247,138	no payment attached
DUN-M015	full acceptance	2025-06	22	Customer IT dependency	$64,812	no payment attached
DUN-M016	site survey complete	2025-07	12	network provisioning	$107,035	invoiceable on certification
DUN-M017	steady-state handover	2026-03	6	seasonal freeze	$93,625	invoiceable on acceptance
DUN-M018	full acceptance	2026-12	21	Customer IT dependency	$105,682	invoiceable on acceptance
DUN-M019	site survey complete	2025-01	16	Customer IT dependency	$65,937	no payment attached
DUN-M020	warranty commencement	2024-06	on plan	network provisioning	$201,675	invoiceable on certification
DUN-M021	integration test passed	2026-03	3	facility readiness	$249,952	invoiceable on certification
DUN-M022	pilot acceptance	2026-06	8	labour agreement	$151,630	no payment attached
DUN-M023	steady-state	2024-11	1	network	$164,619	no payment

Dunbar milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
	handover			provisioning		attached
DUN-M024	pilot acceptance	2026-12	15	labour agreement	$151,493	invoiceable on acceptance
DUN-M025	network readiness certified	2026-10	10	Customer IT dependency	$47,496	no payment attached
DUN-M026	pilot acceptance	2026-08	10	Customer IT dependency	$31,322	invoiceable on certification
DUN-M027	pilot acceptance	2025-08	33	Customer IT dependency	$193,283	invoiceable on certification
DUN-M028	warranty commencement	2025-03	22	no delay	$72,584	no payment attached
DUN-M029	network readiness certified	2025-11	14	facility readiness	$42,988	invoiceable on certification
DUN-M030	integration test passed	2025-10	32	labour agreement	$113,828	invoiceable on certification
DUN-M031	pilot acceptance	2026-09	13	facility readiness	$103,734	invoiceable on certification
DUN-M032	site survey complete	2024-03	13	seasonal freeze	$217,222	invoiceable on acceptance
DUN-M033	units delivered	2025-12	on plan	Customer IT dependency	$153,711	invoiceable on acceptance
DUN-M034	warranty commencement	2024-07	5	no delay	$228,595	no payment attached
DUN-M035	pilot acceptance	2026-11	11	seasonal freeze	$264,044	no payment attached
DUN-M036	full acceptance	2026-08	29	network provisioning	$122,711	invoiceable on certification
DUN-M037	full acceptance	2025-06	15	Customer IT dependency	$31,158	no payment attached
DUN-M038	full acceptance	2024-06	1	facility readiness	$148,659	invoiceable on certification
DUN-M039	network readiness certified	2025-10	20	seasonal freeze	$212,653	invoiceable on acceptance
DUN-M040	full acceptance	2026-06	13	seasonal freeze	$101,693	no payment attached
DUN-M041	warranty commencement	2024-11	17	no delay	$159,775	invoiceable on acceptance
DUN-M042	network readiness certified	2025-03	29	Customer IT dependency	$246,105	invoiceable on acceptance
DUN-M043	full acceptance	2026-01	9	facility readiness	$22,344	invoiceable on acceptance
DUN-M044	network readiness certified	2024-05	20	labour agreement	$249,408	invoiceable on certification
DUN-M045	full acceptance	2026-09	22	network provisioning	$125,591	invoiceable on certification
DUN-M046	site survey complete	2026-09	33	seasonal freeze	$194,593	no payment attached
DUN-M047	warranty commencement	2026-06	26	facility readiness	$147,087	no payment attached
DUN-M048	pilot acceptance	2024-06	5	labour agreement	$149,284	invoiceable on acceptance
DUN-M049	full acceptance	2024-01	5	network provisioning	$118,307	no payment attached
DUN-M050	steady-state handover	2026-03	20	no delay	$183,957	invoiceable on acceptance
DUN-M051	network readiness certified	2025-01	19	facility readiness	$144,359	no payment attached
DUN-M052	pilot acceptance	2024-07	1	facility readiness	$123,245	no payment attached
DUN-M053	pilot acceptance	2025-06	10	seasonal freeze	$121,023	no payment attached
DUN-M054	steady-state handover	2024-09	14	labour agreement	$37,461	invoiceable on certification
DUN-M055	steady-state handover	2026-08	9	labour agreement	$205,628	invoiceable on acceptance
DUN-M056	integration test passed	2026-06	17	labour agreement	$62,414	invoiceable on certification
DUN-M057	warranty	2024-11	31	facility readiness	$178,871	invoiceable on

Dunbar milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
	commencement					acceptance
DUN-M058	site survey complete	2025-03	19	seasonal freeze	$128,774	invoiceable on acceptance
DUN-M059	full acceptance	2025-02	21	network provisioning	$26,216	no payment attached
DUN-M060	pilot acceptance	2024-04	13	seasonal freeze	$152,112	invoiceable on acceptance
DUN-M061	units delivered	2026-11	5	no delay	$116,152	invoiceable on certification
DUN-M062	network readiness certified	2025-02	30	facility readiness	$55,520	invoiceable on certification
DUN-M063	integration test passed	2025-03	5	no delay	$228,465	invoiceable on certification
DUN-M064	units delivered	2025-11	16	Customer IT dependency	$173,240	no payment attached
DUN-M065	warranty commencement	2026-03	25	labour agreement	$145,833	invoiceable on certification
DUN-M066	network readiness certified	2024-11	8	seasonal freeze	$114,281	invoiceable on acceptance
DUN-M067	steady-state handover	2026-12	27	seasonal freeze	$147,789	invoiceable on certification
DUN-M068	warranty commencement	2024-02	29	Customer IT dependency	$175,667	invoiceable on acceptance
DUN-M069	steady-state handover	2026-11	21	seasonal freeze	$93,225	invoiceable on acceptance
DUN-M070	pilot acceptance	2024-10	on plan	no delay	$32,608	no payment attached
DUN-M071	integration test passed	2025-07	2	labour agreement	$253,792	invoiceable on acceptance
DUN-M072	steady-state handover	2025-11	7	network provisioning	$246,750	invoiceable on certification
DUN-M073	network readiness certified	2026-07	on plan	labour agreement	$203,180	no payment attached
DUN-M074	network readiness certified	2026-07	13	Customer IT dependency	$268,516	no payment attached
DUN-M075	pilot acceptance	2024-01	17	facility readiness	$228,644	invoiceable on certification
DUN-M076	integration test passed	2025-01	7	seasonal freeze	$109,066	invoiceable on certification
DUN-M077	pilot acceptance	2024-10	15	seasonal freeze	$35,450	invoiceable on acceptance
DUN-M078	pilot acceptance	2026-06	20	no delay	$145,736	invoiceable on acceptance
DUN-M079	site survey complete	2025-08	12	seasonal freeze	$127,074	no payment attached
DUN-M080	warranty commencement	2024-10	32	no delay	$79,248	invoiceable on acceptance
DUN-M081	steady-state handover	2026-06	33	network provisioning	$210,474	invoiceable on acceptance
DUN-M082	site survey complete	2025-05	31	labour agreement	$117,793	invoiceable on certification
DUN-M083	units delivered	2025-06	6	Customer IT dependency	$138,892	no payment attached
DUN-M084	integration test passed	2024-08	33	Customer IT dependency	$137,702	invoiceable on acceptance
DUN-M085	warranty commencement	2025-04	21	Customer IT dependency	$68,419	no payment attached
DUN-M086	steady-state handover	2026-05	5	facility readiness	$54,521	invoiceable on certification

9. Term, termination and transition

Except as Article 7 (Service Levels) permits, title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. Tighter here than standard: the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Dunbar treats the obligation as a site-level matter across its 3 sites in Indiana, consistent with the Master

Subscription Agreement. For a customer of Dunbar's size the clause is unremarkable, but Article 16 (Term and Termination) is drafted more tightly here than in the Provider's standard form.

Save as Schedule 2 otherwise provides, title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. In point of remedy, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. For Dunbar, a building products operator running 3 sites out of Indiana, the point matters because the Master Subscription Agreement is administered site by site. Dunbar has taken the point up once since signature; the correspondence is filed against Article 7 (Service Levels) and did not result in an amendment.

Read with Exhibit A, either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. By way of qualification, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. This bites at Dunbar's 3 sites, since a building products operator administers the Master Subscription Agreement where the units work. The Dunbar file records the position as at the last amendment, and Article 8 (Acceptance) is the reference a reviewer should cite when raising it.

Nothing in Exhibit C entitles Dunbar to assume that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. On any reading, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Dunbar treats the obligation as a site-level matter across its 3 sites in Indiana, consistent with the Master Subscription Agreement. Where Dunbar has raised a query the Provider has answered by reference to Article 3 (Scope of Supply), and the exchange is on the contract file.

10. Assignment, notices and general

As between Dunbar and the Provider, a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. As a remedy, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Site count matters here: Dunbar has 3 sites, and the Master Subscription Agreement treats each as a separate delivery point. Nothing in the Dunbar negotiation history qualifies Article 7 (Service Levels), and a reviewer should not read the pre-signature drafts as doing so.

Nothing in Exhibit A entitles Dunbar to assume that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. Tighter here than standard: the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Because Dunbar is a Indiana building products business with 3 sites, the Master Subscription Agreement devolves this to the site manager. Where Dunbar has raised a query the Provider has answered by reference to Article 15 (Limitation of Liability), and the exchange is on the contract file.

The Provider has undertaken to Dunbar that confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. As it bites, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Operating 3 sites, Dunbar applies the Master Subscription Agreement at the point of delivery, as building products practice requires. Where Dunbar has raised a query the Provider has answered by reference to Article 3 (Scope of Supply), and the exchange is on the contract file.

The Provider has undertaken to Dunbar that confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. As it bites, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Because Dunbar is a Indiana building products business with 3 sites, the Master Subscription Agreement devolves this to the site manager. Administration of this obligation for Dunbar sits with the account team rather than with central contracts, and Article 3 (Scope of Supply) is where it is evidenced.